

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, May 21, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-25299 against Police Officer Oshane Cole, Tax Registry No. 963460. This case was conferenced on May 16, 2024, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the negotiated penalty of a Command Discipline Schedule A and the total forfeiture of five (5) vacation days, after Police Officer Oshane Cole accepted the findings of substantiation of the allegations contained in the Amended Charges and Specifications dated May 8, 2024. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-25299
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, COLE	FIRST OSHA NE	M.I. J	COMMAND 046 PRECINCT
SHIELD NO. 8641	TAX REGISTRY NO. 963460	SOCIAL SECURITY NO.	DATE APPOINTED 04/12/2017	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL [X]
1 . Police Officer Oshane Cole, on or about August 17, 2020, at approximately 0100, while assigned to 046 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, was discourteous, in that he told an individual, "Come say it to my face, pussy," without police necessity.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.


FIRST DEPUTY COMMISSIONER

6/7/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)


POLICE COMMISSIONER

7/24/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, June 7, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-25299 against Police Officer Oshane Cole, Tax No. 963460, with the recommendation that the Charges and Specifications against Police Officer Cole be dismissed and that Police Officer Cole receive a Schedule "A" Command Discipline and forfeit five (5) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

DC Kinsella

Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/pk

A

APPROVED

Edward A. Caban JUL 24 2024

**EDWARD A. CABAN
POLICE COMMISSIONER**